

**§ 17-307 Licenses, permits required; restrictions; term.**

a. 1. It shall be unlawful for any individual to act as a food vendor without having first obtained a license therefor from the commissioner in accordance with the provisions of this subchapter.

2. In addition to the conditions set forth in section 17-310 of this subchapter a license shall be renewable by the licensee provided that the licensee meets all other requirements for renewal, the license has not been revoked or suspended and the licensee has not committed a violation or violations which could be a basis for license revocation or suspension.

b. 1. (a) It shall be unlawful to vend food from any vehicle or pushcart in a public space without having first obtained a permit for such vehicle or pushcart from the commissioner in accordance with the provisions of this subchapter. On or after July 1, 2032, it shall be unlawful to vend food from any vehicle or pushcart in a public place without a supervisory licensee physically present and vending at such vehicle or pushcart.

(b) The commissioner shall establish standards relating to the size and design of such vehicles and pushcarts. No vendors shall vend from any vehicle or pushcart which does not comply with the standards established by the commissioner. No vendor shall vend from other than a vehicle or pushcart.

(c) No food vendor issued a fresh fruits and vegetables permit shall vend from other than a vehicle or a green cart. No food vendor issued a fresh fruits and vegetables permit shall vend any food other than fresh fruits and vegetables, water, raw single ingredient nuts and other food designated by the commissioner as healthful pursuant to section 17-324.1 from the green cart or vehicle for which the permit was issued.

2. (a) No new full-term permits shall be issued until the number of such permits which are in effect is less than 3,000. Thereafter, the maximum number of such permits which may be in effect shall be 3,000 and no new permits shall be issued in excess of such maximum number. Notwithstanding the limitations on the issuance of new full-term permits, a permit issued prior to July 30, 1983 which is in effect shall be renewable by the licensee to whom the permit was issued subject to the provisions of subparagraph (f) of this paragraph and provided that all other requirements for renewal under the provisions of this subchapter and any rules promulgated pursuant thereto are complied with, the license of the person to whom the permit was issued or the permit has not been revoked or suspended and the licensee has not committed a violation or violations which could be a basis for permit or license revocation or suspension.

(b) (i) On and after March fifteenth, nineteen hundred ninety-five, without increasing the number of full-term permits which may be in effect in accordance with subparagraph (a) of this paragraph, two hundred full-term permits shall be designated for use exclusively in specified boroughs as follows:

(A) fifty of such full-term permits shall authorize the holders thereof to vend food from any vehicle or pushcart in any public place in the borough of the Bronx where food vendors are not prohibited from vending;

(B) fifty of such full-term permits shall authorize the holders thereof to vend food from any vehicle or pushcart in any public place in the borough of Brooklyn where food vendors are not prohibited from vending;

(C) fifty of such full-term permits shall authorize the holders thereof to vend food from any vehicle or pushcart in any public place in the borough of Queens where food vendors are not prohibited from vending; and

(D) fifty of such full-term permits shall authorize the holders thereof to vend food from any vehicle or pushcart in any public place in the borough of Staten Island where food vendors are not prohibited from vending.

(ii) After the initial issuance of such permits, the commissioner shall establish a separate waiting list for each of the relevant boroughs to be administered in accordance with procedures to be established by rules of the commissioner. The commissioner may by rule limit the number of places on each such waiting list. On or after July 1, 2022 all new permits issued pursuant to this subparagraph shall be designated for use exclusively in any borough outside of Manhattan and shall be issued only to the holder of a supervisory license. Such requirement shall not apply to a borough specific permit issued before July 1, 2022 or renewal thereof until July 1, 2032. On or after July 1, 2032, permits issued pursuant to this subparagraph shall issue only to the holder of a supervisory license. Supervisory licenses shall be made available for application to individuals on the waiting lists for borough-specific permits in the order of priority set out in subparagraph (d) of paragraph 5 of this subdivision until such waiting lists are exhausted.

(c) Full-term permits issued under this subchapter shall be issued only to persons who at the time of application have not had a full-term or temporary permit or supervisory license revoked or suspended and who satisfy the commissioner that they are fit and able to conduct, maintain or operate a food vending business. Except as otherwise provided in item (B) of clause (ii) of subparagraph (a) of paragraph three of subdivision f of this section, no person shall be issued more than one permit under this subchapter, whether full-term or temporary. Any full-term permit issued under this subchapter on or after July 1, 2022 shall be issued only to the holder of a supervisory license, applications for which shall be distributed in the order prescribed in subparagraph (d) of paragraph 5 of this subdivision.

(d) The issuance or renewal of a full-term permit pursuant to this subchapter shall be subject to the permittee within three months after the certification of a complete application therefor presenting a pushcart or vehicle for inspection by the department and within six months after such certification, passing such inspection, except that a supervisory licensee may apply for a permit at any time between acquiring a supervisory license and the expiration of such license.

(e) The commissioner shall establish a separate waiting list or lists for the issuance of full-term permits pursuant to this subchapter to be administered in accordance with requirements to be established by rules of the commissioner. The commissioner may by rule limit the number of places on such waiting list or lists.

(f) Except as otherwise provided in item (B) of clause (ii) of subparagraph (a) of paragraph three of subdivision f of this section, on and after January first, nineteen hundred ninety-six, and on every renewal date thereafter, a permit holder may not renew more than one permit, whether full-term or temporary. Such permit shall be renewed provided that all other requirements for renewal under the provisions of this subchapter and any rules promulgated pursuant thereto are complied with, the license of the person to whom the permit was issued or the permit has not been revoked or suspended and such person has not committed a violation or violations which could be a basis for permit or license suspension or revocation.

(g) Other than subparagraphs (c), (d) and (f), this paragraph shall not apply to the issuance of fresh fruits and vegetable permits.

3. (a) (i) Notwithstanding the provisions of paragraph two of this subdivision limiting the number of full-term permits that are authorized to be issued, the commissioner may issue up to a maximum of 100 additional full-term permits authorizing the holders thereof to vend food from any vehicle or pushcart in any public place in the city of New York where food vendors are not prohibited from vending. Such permits shall be issued only to natural persons.

(ii) The department shall make available for application at least 200 supervisory licenses per twelve-month period for five consecutive years beginning on July 1, 2026. Where the number of supervisory licenses issued in such twelve-month period is less than 200, the department may make additional supervisory licenses available for application such that the total number of supervisory licenses issued per twelve-month period beginning on July 1, 2026 is up to 200 and the cumulative total number of supervisory licenses issued pursuant to this paragraph by July 1, 2031 is up to 1,180. In addition to the 100 permits authorized to be issued by clause (i) of this subparagraph, and notwithstanding the provisions of paragraph two of this subdivision limiting the number of full-term permits authorized to be issued, the department shall make available for application to applicants who comply with the requirements for such supervisory licenses an additional 200 permits per twelve-month period for five consecutive years beginning on July 1, 2026 and issue a permit to each applicant who complies with the requirements for such permit.

(iii) Supervisory licenses available pursuant to this paragraph shall be made available for application in accordance with the preferences specified in subparagraph (b) of this paragraph and the procedures established by the commissioner.

(iv) The commissioner shall establish a waiting list to be administered in accordance with procedures to be established by rules of the commissioner.

(b) Preferences shall be given in the issuance of permits pursuant to this paragraph and in the placement on such waiting list to the following categories of persons in the following order:

(i) Veterans who on August second, nineteen hundred ninety-one held a valid general vendor's license issued by the department of consumer and worker protection pursuant to subchapter twenty-seven of chapter two of title twenty of the code by virtue of having claimed a disability.

(ii) Disabled veterans.

(iii) Disabled persons.

(iv) Veterans.

(c) This paragraph shall not apply to fresh fruits and vegetables permits.

4. (a) Notwithstanding the provisions of paragraph two of this subdivision limiting the total number of full-term permits that are authorized to be issued, the commissioner may issue up to a maximum of one thousand fresh fruits and vegetable permits, as that term is defined in subdivision r of section 17-306 of this chapter. Each of the one thousand fruits and vegetables permits to be issued pursuant to this paragraph shall be designated for use exclusively in a specified borough as follows:

(i) three hundred fifty of such fruits and vegetables permits shall authorize the holders thereof to vend fresh fruits and vegetables, water, raw single ingredient nuts and any other food designated by the commissioner as healthful pursuant to section 17-324.1 from any green cart in the borough of the Bronx in the areas designated in clause (i) of subparagraph (b) of this paragraph.

(ii) three hundred fifty of such fruits and vegetables permits shall authorize the holders thereof to vend fresh fruits and vegetables, water, raw single ingredient nuts and any other food designated by the commissioner as healthful pursuant to section 17-324.1 from any green cart in the borough of Brooklyn in the areas designated in clause (ii) of subparagraph (b) of this paragraph.

(iii) one hundred fifty of such fresh fruits and vegetables permits shall authorize the holders thereof to vend fresh fruits and vegetables, water, raw single ingredient nuts and any other food designated by the commissioner as healthful pursuant to section 17-324.1 from any green cart in the borough of Manhattan in the areas designated in clause (iii) of subparagraph (b) of this paragraph.

(iv) one hundred of such fresh fruits and vegetables permits shall authorize the holders thereof to vend fresh fruits and vegetables, water, raw single ingredient nuts and any other food designated by the commissioner as healthful pursuant to section 17-324.1 from any green cart in the borough of Queens in the areas designated in clause (iv) of subparagraph (b) of this paragraph.

(v) fifty of such fresh fruits and vegetables permits shall authorize the holders thereof to vend fresh fruits and vegetables, water, raw single ingredient nuts and any other food designated by the commissioner as healthful pursuant to section 17-324.1 from any green cart in the borough of Staten Island in the areas designated in clause (v) of subparagraph (b) of this paragraph.

(b) The issuance or renewal of a full-term permit issued pursuant to this paragraph shall be subject to the permittee within three months after the certification of a complete application therefore presenting a green cart or vehicle for inspection by the department and, within six months after such certification, passing such inspection. No person shall be issued more than one permit. Fresh fruits and vegetables permits, in addition to being designated for use exclusively in a borough as specified in subparagraph (a) of this paragraph, shall be designated for use exclusively within the police precincts specified below or pursuant to subparagraph (c) of this paragraph, and shall be subject to the same time and place restrictions for vending in such areas as other food vendors:

(i) Bronx: Police Precincts 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 52;

(ii) Brooklyn: Police Precincts 67, 70, 71, 72, 73, 75, 77, 79, 81, 83;

(iii) Manhattan: Police Precincts 23, 25, 26, 28, 30, 32, 33, 34;

(iv) Queens: Police Precincts 100, 101, 103, 113; and

(v) Staten Island: Police Precinct 120.

(c) In addition to the police precincts listed in subparagraph (b) of this paragraph, a fresh fruits and vegetable permits that is designated for use exclusively in a borough as specified in subparagraph (a) of this paragraph may also be designated for use in any other police precinct in such borough that the commissioner has specified in rules of the department, after determining that the rate of consumption of fresh fruits and vegetables in such precinct is substantially lower than the citywide average and that the precinct has an elevated rate of nutrition-related health problems compared to the rest of the city.

(d) Fresh fruits and vegetables permits shall be issued in accordance with the preferences specified in subparagraph (e) of this paragraph and the procedures established by the commissioner. The commissioner shall establish a separate waiting list for each borough, to be administered in accordance with procedures to be established by rules of the commissioner. The commissioner may by rule limit the number of places on each such waiting list.

(e) Preferences shall be given in the issuance of fresh fruits and vegetables permits pursuant to this paragraph and in the placement on any waiting list for such permits to the following categories of persons in the following order:

(i) Persons who, on the effective date of the local law which added this provision, are on any of the existing waiting lists established by the commissioner for the issuance of mobile food unit permits for pushcarts and vehicles. From among those persons within this preference category, additional preference in both the issuance of fresh fruits and vegetables permits and placement on any waiting list for such permits shall be given to those persons who fall within the following groups of persons in the following order: disabled veterans; disabled persons; veterans.

(ii) Disabled veterans.

(iii) Disabled persons.

(iv) Veterans.

(f) A person who has been issued a permit pursuant to this paragraph shall not be eligible to obtain a full-term permit authorized by paragraphs two or three of this subdivision if at the time of application for a full-term permit authorized by such paragraphs such person is a holder of a full-term permit issued pursuant to this paragraph or such person has had a full-term permit issued pursuant to this paragraph revoked or suspended.

5. (a) On or after July 1, 2022 all new permits issued under this subchapter, except fresh fruits and vegetables permits, shall be designated for use

only when any holder of a supervisory license is physically present and vending. Such requirement shall not apply to a permit issued before July 1, 2022 or a renewal thereof until July 1, 2031. On or after July 1, 2031, all permits issued under this subchapter, except fresh fruits and vegetables permits, shall be designated for use only when any holder of a supervisory license is physically present and vending.

(b) The commissioner shall make available for application at least 2,000 supervisory licenses per twelve-month period for five consecutive years beginning on July 1, 2026. Where the number of supervisory licenses issued in such twelve-month period is less than 2,000, the department may make additional supervisory licenses available for application such that the total number of licenses issued per twelve-month period beginning on July 1, 2026 is up to 2,000 and the total cumulative number of licenses issued pursuant to this paragraph by July 1, 2031 is up to 11,200. Notwithstanding the provisions of this subdivision limiting the total number of full-term permits that are authorized to be issued, the commissioner shall make available a permit application to each license applicant who complies with the requirements for such supervisory license and issue a permit to each permit applicant who complies with the requirements for such permit. On or before July 1, 2031, the commissioner shall make available for application supervisory licenses to any person seeking to renew a permit that was issued under this subchapter before July 1, 2022.

(c) In accordance with procedures to be established by rules of the commissioner, in each twelve-month period, up to 500 of the supervisory licenses that may be issued under this paragraph shall be designated for use in any borough, and up to 1,500 such supervisory licenses that may be issued under this paragraph shall be designated for use in boroughs outside of Manhattan.

(d) Preferences shall be given in the availability of applications for supervisory licenses pursuant to this paragraph and in the placement on a waiting list therefor to the following categories of persons in the following order:

(i) Persons who have held a food vendor license continuously since on or before March 1, 2017 and have been on a waiting list for a full-term permit pursuant to subparagraph (e) of paragraph 2 of this subdivision and remain on such list as of the date an application is made available. Applications shall be made available to such persons by order of numerical rank on the waiting list.

(ii) Persons who have been on a waiting list for a full-term permit pursuant to this subchapter and remain on such list as of the date an application is made available but have not held a food vendor license continuously since on or before March 1, 2017. Applications shall be made available to such persons by order of numerical rank on the waiting list.

(iii) Persons who have held a food vendor license continuously since on or before March 1, 2017 but are were not on a waiting list for a full-term permit pursuant to this subchapter as of the effective date of the local law that added this paragraph.

(iv) Persons who have not held a food vendor license continuously since on or before March 1, 2017 and were not on a waiting list for a full-term permit pursuant to this subchapter as of the effective date of the local law that added this paragraph.

(e) The commissioner may by rule limit the number of places on such waiting list, but shall ensure that such waiting list is operative prior to supervisory licenses becoming available to new individuals.

(f) No later than July 1, 2031, the commissioner shall replenish the waiting list in accordance with the preferences set forth in this paragraph.

c. It shall be unlawful for any person to operate a commissary, or place of food distribution, or a place wherein five or more pushcarts, or more than one vehicle are stored, without first obtaining a permit.

d. A food vendor's license shall not entitle the holder thereof to vend any food other than foods which the commissioner or board may authorize or otherwise approve. A food vendor vending from a green cart or vehicle with a fresh fruits and vegetables permit shall not be authorized to vend any food other than fresh fruit and vegetables, water, raw single ingredient nuts and any other food that has been designated by the commissioner as healthful pursuant to section 17-324.1.

e. All licenses and permits issued pursuant to this subchapter shall be valid for two years unless sooner suspended or revoked. The commissioner may issue such licenses and permits to expire at various times during a year. To achieve such staggered expiration dates, initial licenses or permits may be issued for a period up to three years.

f. 1. The commissioner may issue temporary licenses and permits upon the furnishing of information and an application in such form and detail as such commissioner may prescribe and the payment of a fee pro-rated in accordance with the schedule of fees set forth in section 17-308 of this subchapter, but in no event shall the fee for such temporary license be less than ten dollars or the fee for such temporary permit be less than fifteen dollars.

2. In addition to the conditions set forth in section 17-310 of this subchapter a temporary license shall be renewable by the licensee within one year of its expiration date provided that the licensee meets all other requirements for renewal, the license has not been revoked or suspended and the licensee has not committed a violation or violations which could be a basis for license revocation or suspension.

3. (a) (i) On and after July thirtieth, nineteen hundred eighty-three, no new temporary permits shall be issued until the number of such permits which are in effect is less than one thousand. Thereafter, the maximum number of such permits which may be in effect shall be one thousand and no new permits shall be issued in excess of such maximum number. Notwithstanding the limitations on the issuance of new temporary permits, a temporary permit issued prior to July thirtieth, nineteen hundred eighty-three shall be renewable by the licensee to whom the permit was issued within one year of its expiration date subject to the provisions of clause (ii) of this subparagraph and provided that all other requirements for renewal under the provisions of this subchapter and any rules promulgated pursuant thereto are complied with, the license of the person to whom the permit was issued or the permit has not been revoked or suspended and the licensee has not committed a violation or violations which could be a basis for license or permit revocation or suspension.

(ii) (A) Except as otherwise provided in item (B) of this clause, on and after January first, nineteen hundred ninety-six, and on every renewal date thereafter, a permit holder may not renew more than one permit, whether full-term or temporary. Such permit shall be renewed provided that all other requirements for renewal under the provisions of this subchapter and any rules promulgated pursuant thereto are complied with, the license of the person to whom the permit was issued or the permit has not been revoked or suspended and such person has not committed a violation or violations which could be a basis for permit or license suspension or revocation.

(B) (I) Notwithstanding any other provision of law to the contrary, on and after the effective date of the local law which added this subitem, any person who is an exclusive distributor or a manufacturer of a food product and who on February third, nineteen hundred ninety-five was an exclusive distributor or a manufacturer of such food product who held more than one temporary permit issued pursuant to this subchapter, may be issued the number of additional temporary permits such person held on February third, nineteen hundred ninety-five and, in addition, may continue to hold one full-term permit issued pursuant to this subchapter if such exclusive distributor or manufacturer held one full-term permit issued pursuant to this subchapter on the effective date of the local law which added this subitem. A written agreement evidencing an exclusive distributorship shall be proof satisfactory that an applicant for multiple temporary permits was an exclusive distributor of a food product on February third, nineteen hundred ninety-five and is an exclusive distributor of such food product at the time of such application. Any written agreement evidencing an applicant's status as an exclusive distributor on February third, nineteen hundred ninety-five shall have been in effect on such date.

(II) Any person who is eligible for the issuance of additional temporary permits pursuant to subitem (I) of this item shall be issued a maximum of sixty temporary permits.

(III) Additional temporary permits shall be issued pursuant to subitem (I) of this item only to persons who are eligible therefor who have not at the time of application for such additional temporary permits had a permit issued pursuant to this subchapter revoked or suspended and who satisfy the commissioner that they are fit and able to conduct, maintain and operate a food vending business. Such permits shall be renewed provided that all other

requirements for renewal under the provisions of this subchapter and any rules promulgated pursuant thereto are complied with, the license of the person to whom the permits were issued or the permits have not been revoked or suspended and such person has not committed a violation or violations which would be a basis for permit or license suspension or revocation.

(IV) Nothing contained in subitem (I) of this item shall be construed as authorizing the issuance of full-term or temporary permits in excess of the numbers of such permits that are authorized to be issued pursuant to paragraph two of subdivision b of this section or clause (i) of this subparagraph.

(b) On and after January first, nineteen hundred ninety-five, temporary permits shall be issued only to persons who have not had a temporary permit revoked or suspended and who satisfy the commissioner that they are fit and able to conduct, maintain or operate a food vending business.

(c) The issuance or renewal of a temporary permit pursuant to this subchapter shall be subject to the permittee within three months after the certification of a complete application therefor presenting a pushcart or vehicle for inspection by the department and within six months after such certification, passing such inspection.

(d) The commissioner shall establish a separate waiting list for the issuance of temporary permits pursuant to this subchapter to be administered in accordance with procedures to be established by rules of the commissioner. The commissioner may by rule limit the number of places on such waiting list.

(e) Temporary permits and temporary licenses issued pursuant to this subchapter shall be valid only during the period of time beginning on April first and ending on October thirty-first of each calendar year.

g. For purposes of determining the number of full-term or temporary permits held by a permittee pursuant to subdivisions b and f of this section, the following provisions shall apply:

1. A natural person shall be deemed to hold the full-term or temporary permits issued in the name of such natural person's unemancipated child, a partnership in which such natural person is a partner, a corporation in which such natural person is an officer, director or shareholder, or a limited liability company in which such natural person is a member, manager or officer.

2. A corporation shall be deemed to hold the full-term or temporary permits issued in the name of:

(a) an officer, director or shareholder of such corporation;

(b) another corporation where such corporation and such other corporation share a common officer, director or shareholder, or such corporation or any of its officers, directors or shareholders has any direct or indirect interest in such other corporation;

(c) a limited liability company where such corporation or any of its officers, directors or shareholders is a member, manager or officer of such limited liability company, or such corporation or any of its officers, directors or shareholders has any direct or indirect interest in such limited liability company; or

(d) a partnership where such corporation or any of its officers, directors or shareholders is a partner in such partnership, or such corporation or any of its officers, directors or shareholders has any direct or indirect interest in such partnership.

3. A limited liability company shall be deemed to hold the full-term or temporary permits issued in the name of:

(a) a member, manager or officer of such limited liability company;

(b) another limited liability company where such limited liability company and such other limited liability company share a common member, manager or officer, or such limited liability company or any of its members, managers or officers has any direct or indirect interest in such other limited liability company; (c) a corporation where such limited liability company or any of its members, managers or officers is an officer, director or shareholder in such corporation, or such limited liability company or any of its members, managers or officers has any direct or indirect interest in such corporation; or

(d) a partnership where such limited liability company or any of its members, managers or officers is a partner in such partnership, or such limited liability company or any of its members, managers or officers has any direct or indirect interest in such partnership.

4. A partnership shall be deemed to hold the full-term or temporary permits issued in the name of:

(a) a partner of such partnership;

(b) another partnership where such partnership is a partner in such other partnership, such partnership and such other partnership share a common partner, or such partnership or any if its partners has any direct or indirect interest in such other partnership;

(c) a corporation where such partnership or any of its partners is an officer, director or shareholder in such corporation, or such partnership or any of its partners has any direct or indirect interest in such corporation; or

(d) a limited liability company where such partnership or any of its partners is a member, manager or officer in such limited liability company, or such partnership or any of its partners has any direct or indirect interest in such limited liability company.

h. No permit or license, including a supervisory license, shall be issued to a person required to have a permit or license pursuant to this subchapter unless such person obtains a certificate issued by the department subsequent to successful completion of a training developed or approved by the department on the vending restrictions contained in this section and any other information the department deems necessary to the safe operation of such vending unit, and passage of an examination administered by the department. Such training shall include information related to any vending restriction applicable to the prospective license holder and shall include education related to vending restrictions applicable to the prospective license holder. The department shall require renewal of such certificate every four years. Renewal shall be contingent on passing an examination regarding the vending restrictions contained in this section and any other information the department deems necessary to the safe operation of such vending unit pursuant to rules promulgated by the department. Any examinations, or educational materials designed for such training program shall be made available in English and in the ten most common languages spoken by limited English proficient individuals in the city according to the department of city planning. Such educational materials shall be available on the department's website.

(Am. L.L. 2020/080, 8/28/2020, eff. 8/28/2020; Am. L.L. 2021/018, 2/28/2021, eff. 2/28/2021, 5/29/2021 and 8/27/2021; Am. L.L. 2026/054, 1/29/2026, eff. 1/29/2026; Am. L.L. 2026/059, 1/29/2026, eff. 1/29/2026)

**Editor's note:** For related unconsolidated provisions, see Appendix A at L.L. 1997/027, L.L. 2005/128, L.L. 2008/009, L.L. 2020/080, and L.L. 2021/018.

#### **§ 17-315.1 Cleanliness and waste removal requirements.**

a. A vendor shall keep the area within a 2-foot radius surrounding such vendor's vending vehicle or pushcart free from obstruction and keep such area free from garbage, refuse, rubbish, litter or debris.

b. A vendor shall, upon the request of a person authorized to enforce this section, provide proof of the proper waste disposal at a commissary required by subdivision e of section 89.27 of the New York city health code, in accordance with rules of the department of sanitation, as allowed by law.

